



File No.: EXP202201212

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated October 10, 2022, and based on the following

FACTS

FIRST: On October 10, 2022, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202201212, proceeding to archive the preliminary investigation proceedings. This resolution was notified to the appellant on October 10, 2022, as evidenced by the acknowledgment of receipt in the file.

SECOND: The appellant submitted on October 16, 2022, to this Spanish Agency for Data Protection, a recourse for reconsideration, fundamentally basing it on the allegations previously presented; in particular, it states the following:

“(…) Not being a specialist in the matter, I interpret that what the agency is saying is that Orange is the holder of the line, which would be subcontracted to Advento Networks, or that Orange is the operator of the line and the ownership of it in Spain corresponds to Advento Networks. In either case, they would be intervening parties between STG Group and the claimant (myself) and beneficiaries of a more or less lucrative commercial activity with the end user (STG Group).

4. The fact that STG Group has its headquarters outside the European Union poses a difficulty in clarifying the real intention of the calls, but this does not exempt the other parties involved from their share of responsibility, which would be subsidiary civil liabilities.

5. In this regard, Article 120.2 and by analogy 120.4 of the Penal Code are clear: “They are also civilly liable, in the absence of those who are criminally liable [...] 2) Natural or legal persons who are the owners of publishers, newspapers, magazines, radio or television stations, or any other means of written, spoken, or visual dissemination, for the crimes committed using the means of which they are owners, without prejudice to the provisions of Article 212. [...] 4) Natural or legal persons engaged in any kind of industry or commerce, for the crimes committed by their employees or dependents, representatives, or managers in the performance of their obligations or services [...]”

(…)

7. Thus, I consider that the silence of STG Group is irrelevant to the case at hand, since the unwanted call was made from a telephone number located in Spain, and it must be the company that is the holder in Spain of that number who must respond for it, whether it is Orange or Advento Networks. Following any potential sanction, they will be the ones who demand accountability or claim damages from STG Group, which is not my concern.

8. To accept without more that by the mere fact of being outside the EU space the final holder of the line would be tantamount to saying that the GDPR is worthless, paving the way for telecommunications companies to subcontract commercial management to third countries outside the EU from which they could benefit at some point.”

LEGAL GROUNDS

I

Competence

The Presidency of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

Regarding the statements made by the appellant, it should be noted that even though the holder of the

calling line is presumably identified, it is not possible to determine who is responsible for the call as they have not responded to the information requests made by this Agency, and therefore, the necessary conditions for attributing responsibility to those subjects are not met.

The investigations carried out by this Agency indicate that the claimed number belongs (was ceded for exploitation to STG GROUP SAC by ADVENTO NETWORKS, S.L.), a company located in Peru.

As noted in the contested Resolution, information requests were sent to the aforementioned company and no responses have been received to any of them.

It should be noted that the General Telecommunications Law does not confer the Spanish Agency for Data Protection with competencies over a company located in Peru.

Through the actions carried out by this Agency, it has not been possible to determine the responsible party for the calling number as no response has been received to the request sent to the final holder of the number, which is STG GROUP, based in Peru, and their responsibility in this regard cannot be determined.

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In conclusion, it has not been possible to identify the responsible party for an alleged infringement.

Thus, Article 28.1 of Law 40/2015, on the Legal Regime of the Public Sector states that “only individuals and legal entities, as well as, when a law recognizes their capacity to act, affected groups, unions and entities without legal personality, and independent or autonomous assets, that are found responsible for the same due to intent or negligence, may be sanctioned for acts constituting an administrative infringement.”

In relation to the above, it is worth noting that the Administrative Sanctioning Law, due to its specificity, is subject to the guiding principles of criminal law, with some nuances but without exceptions, resulting in the clear applicability of the principle of presumption of innocence.

The Constitutional Court in its Judgment 76/1990, of April 26, regarding the right to the presumption of innocence and the principle of culpability establishes: “There can be no doubt that the presumption of innocence applies without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions, whether criminal, administrative in general, or tax in particular, since the exercise of *ius puniendi* in its various manifestations is conditioned by the evidence and a contradictory procedure in which one can defend their own positions. In this sense, the right to the presumption of innocence entails: that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof lies with the accuser, with no one being obliged to prove their innocence; and that any insufficiency in the results of the evidence presented, freely assessed by the sanctioning body, must result in an acquittal ruling.”

The Judgment of the Constitutional Court of 20/02/1989 indicates that “Our doctrine and criminal jurisprudence have maintained that, although both can be considered as manifestations of a generic *favor rei*, there is a substantial difference between the right to the presumption of innocence, which unfolds its effectiveness when there is an absolute lack of evidence or when the evidence presented does not meet procedural guarantees, and the jurisprudential principle in *dubio pro reo* which pertains to the moment of evaluation or assessment of evidence, and which must be judged when that indispensable evidentiary activity exists, there is a rational doubt about the actual concurrence of the objective and subjective elements that integrate the criminal type in question.”

In conclusion, these principles prevent imputing an administrative infringement when no incriminating evidence has been obtained and accredited regarding the facts that motivate this accusation or when the identity of the alleged infringer is not known with certainty, applying the principle “in *dubio pro reo*” in case of doubt.

III

Conclusion

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

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IV

Late Resolution

Due to reasons related to the functioning of the administrative body, and therefore not attributable to the appellant, the mandatory pronouncement of this Agency regarding the present appeal has not been issued to date.

According to the provisions of Article 24 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the sense of administrative silence in the procedures for challenging acts and provisions is dismissive.

Nevertheless, and despite the time elapsed, the Administration is obliged to issue an express resolution and notify it in all procedures, regardless of their initiation form, as provided in Article 21.1 of the aforementioned LPACAP.

Therefore, it is appropriate to issue the resolution that concludes the procedure of the appeal for reconsideration filed.

Considering the cited provisions and others of general application,

The Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by A.A.A. against the resolution of this Spanish Agency for Data Protection issued on October 10, 2022, in file EXP202201212.

SECOND: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDPGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative pathway in accordance with Article 48.6 of the LOPDPGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative pathway may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact in writing.

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addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in art. 16.4 of the aforementioned LPACAP. You must also provide the Agency with the documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the precautionary suspension to be concluded.

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with art. 48.2 LOPDPGDD, due to the vacancy of the positions of Presidency and Deputy

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